

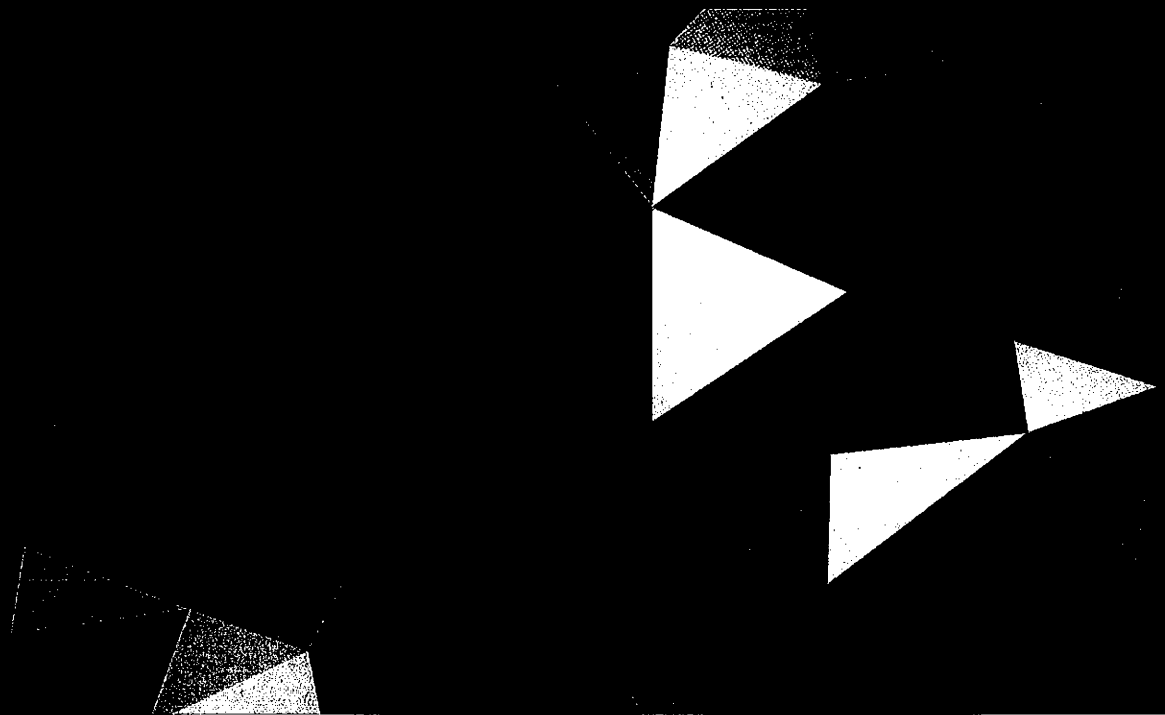
**INCLUSIVE EDUCATION FOR STUDENTS
WITH DISABILITIES SERIES**

INCLUSIVE EDUCATION

in a

STRENGTHS-BASED ERA

MAPPING THE FUTURE OF THE FIELD



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Least Restrictive Environment

One of the most frequently misinterpreted requirements in IDEA, in our opinion, pertains to the LRE mandate. Here is how IDEA (§300.114(a)(2)) defines LRE:

Each public agency must ensure that—

- (i) To the maximum extent appropriate, children with disabilities, including children in public or private institutions or other care facilities, are educated with children who are nondisabled; and
- (ii) Special classes, separate schooling, or other removal of children with disabilities from the regular educational environment occurs only if the nature or severity of the disability is such that education in regular classes with the use of supplementary aids and services cannot be achieved satisfactorily. (<https://sites.ed.gov/idea/regs/b/b/300.114>)

Before we explore what the LRE mandate actually means, we have to understand the legal basis for its inclusion in EHA in 1975. The LRE language in IDEA has its origins in the legal principle of least restrictive alternative, which posits that, if the government is going to restrict the liberty and freedom of a citizen in any way, the government has a constitutional obligation to do so "in a way that is least restrictive of the person's liberty itself, in a way that is less drastic than other ways available to the state." Writing only a few years after the full implementation of EHA, Turnbull (1981, p. 26) described least restrictive alternative as "a method of limiting government intrusion into people's lives and rights even when the government is acting in an area which is properly open to governmental action." Let us return now to the LRE language, remembering that public schools are governmental entities and thus must abide by the least restrictive alternative doctrine. The statement that children with disabilities must be educated with children who are nondisabled to the maximum extent appropriate

Special education refers to adaptations to instruction, methodology, and content; supplementary aids and services refer to adaptations and modifications to the context that are distinct from the adaptations to instruction, content, and methodology.

is, in essence, a statement of what constitutes the least restrictive alternative. The second part of the LRE statement provides guidance to schools as to what circumstances might constitute a justification for going beyond the least restrictive alternative. That is, removal from regular education environments occurs "only if the nature or severity of the disability is such that education in regular classes with the use of supplementary aids and services cannot be achieved satisfactorily."

Let us look more closely at the justification for removal from regular education environments. The prevailing understanding of this is that the *nature and severity* of a student's disability determines whether that student should be educated somewhere other than the general education setting. That is, most IEP (individualized education program) teams look first at the nature and severity of a student's disability to determine placement within or outside the general education setting (as well as their beliefs about students with certain types of disabilities and levels of impairment). That is certainly how inclusion or exclusion has been practiced over the life of EHA/IDEA, and this is why even today only 17% of students with intellectual disability and fewer than half of students with emotional and behavioral disabilities are educated in general education settings for 80% or more of their day.

However, that is not what the LRE language says. It states that removal from regular education environments occurs *only if* students cannot be successful in regular education

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environments with the use of supplementary aids and services. This tells us a couple of things. First, that special education (e.g., specially designed instruction) was not mentioned in the LRE statement indicates that adapting the delivery of instruction, content, and methodology is not specific to the context in which students are educated. Second, it tells us that the context in which the federal law prioritizes instruction is the regular education environment, with students in that context supported with supplementary aids and services (such as those listed in Table 1.1) so that students can benefit from specially designed instruction in regular education environments. And, just to wrap up the discus-

sion about terms in the LRE requirements, officials in the U.S. Department of Education's Office of Special Education Programs, which implements regulations pertaining to IDEA, issued guidance defining "regular education environments" as encompassing "regular classrooms and other settings in schools such as lunchrooms and playgrounds in which children without disabilities participate" (71 Fed. Reg. 46585, 2006).

Thus, where special educators should be teaching, in our estimation, should be in the least restrictive environment, which IDEA refers to as regular educational environments. Special educators are responsible for providing specially designed instruction and implementing supplementary aids and services in regular educational settings as a default context. Only if a student is not successful in such a context should the decision to remove that student be considered. And, as will be fleshed out in this book and in subsequent books in the Norton Inclusive Education for Students With Disabilities series, with advances in schoolwide and multitiered systems of supports, in technology and universal design for learning, in the increasing presence of personalized learning for all students, and in myriad other factors, there is the promise and potential that every child can receive an *appropriately* ambitious education that considers each child's potential for growth.

Beyond De Minimis

At the end of the preceding section, we intentionally used the terms *appropriately ambitious education* and *potential for growth*. We drew these terms from a 2017 U.S. Supreme Court ruling that established what constituted *appropriate* and *beneficial* educational programs as required by IDEA and that provides part of the answer to what special education is in an inclusive and strengths-based era. First, it is important to understand how the requirements for an appropriate education (as in a free, appropriate public education, which is what IDEA requires) have been interpreted for much of the lifetime of IDEA.

In 1982, the U.S. Supreme Court issued a decision in *Board of Education of the Hendrick Hudson Central School District v. Rowley* (458 U.S. 176) that established a standard for what constituted an appropriate education for students with disabilities for the next 25 years. The Court held that the EHA did not require a state to "maximize the potential of each handicapped child commensurate with

the opportunity provided nonhandicapped children." Rather, the state need only provide "specialized instruction and related services which are individually designed to provide educational benefit to the handicapped child." That is, a school district was obligated not to develop an IEP that would encourage a student with a disability to achieve his or her academic best, or to provide the best possible program, but merely to provide one that might reasonably be thought to benefit the student in some way (Weatherly & Conrad, 2016).

The problems with this standard are myriad. For one, what constitutes a "program designed to provide educational benefit" becomes, by and large, a paperwork standard: considerable effort was placed on documenting that schools were in compliance with procedures stipulated in EHA/IDEA. Also, what constitutes educational benefit is in the eye of the beholder, and if educators and others hold low expectations for students, then programs based even on "student potential" can have little or no meaningful benefit.

Enter Andrew F., a student diagnosed with autism at two years of age. As described in Turnbull et al. (2019), Andrew entered preschool in a school district in Colorado and transitioned from preschool to elementary school. By Andrew's fourth grade year, however, his parents had become dissatisfied with his progress or, in their opinion, his lack thereof. He engaged in behaviors that disrupted his learning, including screaming in class, climbing over furniture, and on occasion running away from school. His parents were frustrated because, in their opinion, his IEP had the same goals and objectives year after year, and he was not making meaningful progress toward even those repetitive goals. When, in April 2010, the district presented Andrew's parents with a proposed IEP for his fifth grade year that in their opinion was just more of the same, they withdrew Andrew from public school and enrolled him in a private school for children with autism.

Andrew did progress at the new school, which implemented a behavioral intervention plan to address his behavioral issues and instituted more challenging academic goals for him. Andrew's parents took the information about his progress, and how it had been achieved, back to the public school district with the intention to move Andrew back to the public school and receive the beneficial educational program implemented in the private school. Instead, they were presented with an IEP that, in their viewpoint, simply repeated what had been offered in April 2010; they rejected it and kept Andrew at the private school. In

February 2012, Endrew's parents filed a complaint with the state Department of Education seeking reimbursement for the tuition they paid to the private school. The standard they had to meet, legally, to be reimbursed was that the school district had not provided a free, appropriate public education prior to his enrollment in the private school. As per *Rowley*, they contended that the final IEP they had received was not reasonably calculated to enable Endrew to receive educational benefits. Beginning with a mediator and then in decisions by the federal district court and the Tenth Circuit Court, the determination was that, while it was clear that Endrew did not evidence much educational growth and progress, the annual IEPs provided by the public school did evidence a pattern of minimal progress.

In January 2017, lawyers for the family and the school district argued their sides before the U.S. Supreme Court. In their report, issued in March 2017, the Court summarized the Tenth Circuit Court's decision as noting that

it had long interpreted this language [referring to *Rowley*] to mean that a child's IEP is adequate as long as it is calculated to confer an "educational benefit [that is] merely . . . more than *de minimis*." Applying this standard, the Tenth Circuit held that Endrew's IEP had been "reasonably calculated to enable [him] to make *some* progress." (137 S. Ct. 988 [2017])

De minimis is a term used in law and accounting to mean lacking in significance, importance, or value. Thus, the Supreme Court was summarizing the decisions that preceded the *Endrew F.* case, both previous court rulings in this specific case and, more generally, lower courts' rulings in the wake of *Rowley*, as requiring only benefit that exceeded minimal progress.

In considering the arguments before them in *Endrew F.*, the Supreme Court justices concluded that,

when all is said and done, a student offered an educational program providing "merely more than *de minimis*" progress from year to year can hardly be said to have been offered an education at all. For children with disabilities, receiving instruction that aims so low would be tantamount to "sitting idly . . . awaiting the time when they were old enough to 'drop out.'" . . . It requires an educational program reasonably calculated to enable a child to make progress appropriate in light of the child's

circumstances." (https://www.supremecourt.gov/opinions/16pdf/15-827_0pm1.pdf, p. 14).

The *Endrew F.* ruling established new standards for what is an appropriate education, stating the following:

- A child's educational program must be *appropriately ambitious* [emphasis added] in light of the child's circumstances. (p. 3)
- Goals may differ, but every child should have the chance to meet *challenging objectives* [emphasis added]. (p. 3)
- An IEP is not a form document. It is constructed only after consideration of the child's present levels of achievement, disability, and *potential for growth* [emphasis added]. (p. 12)
- The adequacy of a given IEP turns on the unique circumstances of the child for whom it was created. (p. 13)

Fundamentally, in *Endrew F.*, the U.S. Supreme Court changed how an appropriate or beneficial education is understood. A child's educational program must be appropriately ambitious, and every child should have the opportunity to meet challenging objectives. An educational program must be appropriately ambitious in light of that child's circumstances; rather than rely solely on present levels of achievement and the child's disability, the program must take into consideration the child's potential for growth and the child's unique circumstances.

Not only do the *Endrew F.* standards raise the bar well above *de minimis*; it also, in our opinion, aligns the education of learners with disabilities closely with personalized learning in general, as we noted at the start of this chapter. That is, a child's educational program should be appropriately ambitious and provide challenging objectives, be based on the child's unique circumstances—including the child's unique interests, abilities, strengths, and instructional needs—and take into account a child's potential for growth. In an age of personalized learning and strengths-based approaches, that formula could apply to almost every child in school.

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Conclusion

In this chapter, we began by posing the question, What is special education today? We have suggested pieces of the answer to that question. First, we need to understand that special education is specially designed instruction and not a place where students are sent and that, in an era of dramatic educational reformation, the tools, knowledge, and strategies that special educators hold should be part of the educational system's efforts to personalize learning and to promote student agency. Like all aspects of education, the context of special education has changed and, more important, continues to rapidly evolve. Education is responding to changing, global demands for students to master skills such as communication, creativity, critical thinking, problem solving, and collaboration. It is doing so by providing increasingly personalized learning opportunities; promoting student agency and enhancing motivation by focusing on students' strengths and interests; leveraging technology; and moving away from the notion that all children need to acquire a single set of skills to be successful. These trends are as important to special education as to general education and we will highlight issues pertaining to them in greater detail throughout the book.

Second, we have suggested that IDEA has an unambiguous preference for educating children with disabilities in regular education environments, compelled by the LRE doctrine. Although it has too often not been interpreted as such, the LRE requirement in IDEA makes it clear that removal from regular education environments should occur only when the student cannot be successful when provided supplementary aids and services and specially designed instruction. Further, there has been steady, if at times incremental, progress in achieving the preference that learners with disabilities be educated in regular education environments with their nondisabled peers. The field has already recognized that we need to focus on schoolwide approaches to educating learners with disabilities, leveraging technology and universal design to ensure access, and emphasizing student agency and self-determination. These goals are important in the education of all children, require educators who have skills to individualize learning, and, logically, are best situated in regular education environments.

We need to ask why some children continue to be excluded from high-quality instruction in regular education environments. One part of the answer we have proposed here is that the LRE requirement has been misinterpreted to mean that the nature and severity of a child's disability should be considered

when making placement decisions. But this is counter to the LRE requirement for removal only if students cannot be educated successfully in typical educational settings with a wide array of supports and services; to the higher expectations for involvement with and progress in the general education curriculum in IDEA; and, seemingly, to the Supreme Court's expectations in *Endrew F.* that every child's educational program must be appropriately ambitious, that every child should have the opportunity to meet challenging objectives, and that IEPs should take into consideration the child's potential for growth and unique circumstances.

Reflective Questions for Group Study

1. What factors have influenced the interpretation of the least restrictive environment requirements in IDEA?
2. What global educational trends are influencing the education of students with disabilities?
3. How does the Supreme Court ruling in *Endrew* change how we understand a "free appropriate public education"?